

MATT J. RAILO (State Bar No. 169569)
BRIAN A. ROSS (State Bar No. 193506)
MITCHELL SILBERBERG & KNUPP LLP
11377 West Olympic Boulevard
Los Angeles, California 90064-1683
(310) 312-2000; Fax: (310) 312-3100

JOHN R. SOMMER (SBN 106355)
ATTORNEY-AT-LAW
17426 Daimler Street, Suite 200
Irvine, California 92614
(949) 752-5344, Fax: (949) 752-5439

Attorneys for Plaintiff
STUSSY, INC.

2004 DEC 10 AM 11:34
U.S. DISTRICT COURT
CENTRAL DISTRICT OF CALIF.
SANTA ANA

FILED

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA
SOUTHERN DIVISION

SACV04-1425 AHS (ANx)

STUSSY, INC., a California corporation,

Plaintiff,

v.

FRESH JIVE MANUFACTURING,
INC.,

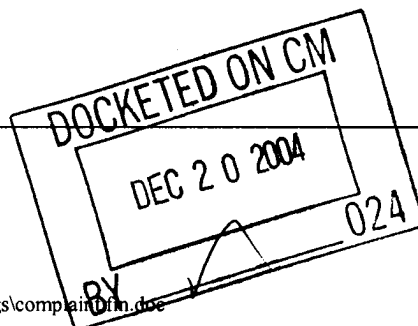
Defendant.

Case No.:

COMPLAINT FOR:

1. TRADEMARK INFRINGEMENT
(15 U.S.C. §1114);
2. FALSE OR MISLEADING
DESCRIPTIONS AND
REPRESENTATIONS, AND
DILUTION (15 U.S.C. §1125);
3. INFRINGEMENT OF CALIFORNIA
AND COMMON LAW
TRADEMARKS AND TRADE
NAME RIGHTS (Cal. Bus. & Prof.
Code §§14320, 14335 and 14340);
4. INJURY TO BUSINESS
REPUTATION AND DILUTION
(Cal. Bus. & Prof. Code §14330); and
5. UNFAIR COMPETITION AND
UNFAIR PRACTICES (Cal. Bus. &
Prof. Code §§17200-17208).

DEMAND FOR JURY TRIAL



1
2 Plaintiff Stussy, Inc. ("Stussy"), by its attorneys, alleges as follows:
3

4 **JURISDICTION AND VENUE**

5 1. This Court has subject-matter jurisdiction of this action pursuant to 15
6 U.S.C. §1121 and 28 U.S.C. §§1331 and 1338 as it involves claims arising under the
7 Lanham Act and substantially related claims for unfair competition. This Court has
8 supplemental subject-matter jurisdiction over all other claims pursuant to 28 U.S.C.
9 §1367 because they are so related that they form part of the same case or controversy.

10 2. This Court has personal jurisdiction over the Defendant in that it is doing
11 business in the State of California and the Central District of California, and it is
12 committing the acts hereinafter alleged in this State and the Central District of
13 California.

14 3. Venue for this action is proper in the Central District of California
15 pursuant to 28 U.S.C. §1391(b) in that a substantial part of the events giving rise to
16 the claim occurred in the Central District of California.

17 4. This is a civil action arising under the United States Trademark Act of
18 1946, as amended, 15 U.S.C. §1051, *et seq.* (the "Lanham Act"), for trademark
19 infringement in violation of 15 U.S.C. §§1114 and 1116, for false or misleading
20 descriptions and representations, and dilution in violation of 15 U.S.C. §1125, and
21 under the statutory and common law of the State of California relating to trademarks,
22 trade names, dilution, unfair competition and related rights. (California Business &
23 Professions Code §§14320, 14330, 14335, 14340, and 17200-17208.)
24

25 **PARTIES**

26 5. Stussy is a corporation duly organized and existing under the laws of the
27 State of California, having its principal place of business within the Central District of
28 California at 17426 Daimler Street, Irvine, California 92614.

1 6. Upon information and belief, Stussy avers that Defendant Fresh Jive
2 Manufacturing, Inc., ("Defendant"), is a corporation doing business in the Central
3 District of California at 1317 South Olive Street, Los Angeles, California 90015.
4 Apparently, Defendant also does business as Fresh Jive Manufacturing Co.
5

6 **ALLEGATIONS IN SUPPORT OF ALL CLAIMS**

7 7. Since approximately 1981, Stussy has been and is now engaged in the
8 business of manufacturing, promoting, distributing, and selling its high-quality
9 clothing. All of Stussy's products are manufactured pursuant to its strict
10 specifications and quality control.

11 8. Stussy has long used, prior to the acts of Defendant herein, the trademark
12 STUSSY in what Stussy refers to as the STUSSY Graffiti Logo. The STUSSY
13 Graffiti Logo is an extremely valuable asset for Stussy. The STUSSY Graffiti Logo is
14 widely recognized and understood as standing for Stussy's excellent reputation and
15 products.

16 9. Stussy is the owner of the world-famous mark STUSSY Graffiti Logo mark
17 (hereinafter sometimes referred to as Stussy's Mark). On May 13, 1997, the STUSSY
18 Graffiti Logo mark was registered on the Principal Register of the United States
19 Patent & Trademark Office as Registration No. 2,060,941 for "clothing, namely t-
20 shirts, sweatshirts, jerseys, shorts, sweatpants, jackets, hats, caps, swimsuits, skirts,
21 dresses, shirts, tank tops, pants, coats and belts." A copy of this registration is
22 attached hereto as Exhibit "A" and incorporated herein by this reference. Since the
23 issuance of the '941 registration, Stussy has given notice that this mark is registered
24 pursuant to 15 U.S.C. § 1111, by displaying the registration symbol ®. Stussy's right
25 to use in commerce the STUSSY mark has become incontestable pursuant to 15
26 U.S.C. § 1065.
27
28

1 10. On August 27, 1999, the STUSSY Graffiti Logo mark was registered by
2 the California Secretary of State as Registration No. 105471. A copy of this
3 registration is attached hereto as Exhibit "B" and incorporated herein by this
4 reference.

5 11. Stussy owns registrations for STUSSY Graffiti Logo in other countries.
6 To the extent that Defendant seeks to offer for sale or sell the infringing products in
7 other countries, Stussy will amend the complaint to allege such other registrations.

8 12. The registrations for these STUSSY marks are valid, subsisting, and
9 exclusively owned by Stussy.

10 13. At all times relevant hereto, Stussy's Graffiti Logo mark has been
11 continually used by Stussy throughout the world and in the United States, including
12 California, on or in connection with the manufacture, distribution, sale and promotion
13 of its products.

14 14. As a result of Stussy's widespread and continuous use, advertisement,
15 and promotion of its products in connection with Stussy's Graffiti Logo mark, it has
16 become widely known and recognized as identifying Stussy as the source of a wide
17 variety of clothing and related goods and as distinguishing such goods from those of
18 others. Stussy's Mark has come to represent and symbolize the excellent reputation of
19 Stussy's products and Stussy's valuable goodwill among members of the public
20 throughout the world and in the United States, including California. Stussy's Mark
21 has acquired a secondary meaning throughout the world and in the United States,
22 including California.

23 15. Stussy's Mark is more valuable than ordinary marks because Stussy's
24 business model is to create an exclusive brand with limited distribution. As a result,
25 there is much unmet demand for Stussy's products and products with Stussy's look.
26 As alleged below, Defendant attempts to fill the market for Stussy's Mark and
27 products by knowingly and slavishly copying Stussy's Mark.
28

1 16. The STUSSY Graffiti Logo can be and has been infringed without
 2 infringing the STUSSY word mark. In fact, others have previously infringed the
 3 STUSSY Graffiti Logo. Stussy has filed lawsuits against those who infringed, or
 4 sought to infringe the STUSSY Graffiti Logo or the very similar STUSSY Script
 5 Logo, including:

- 6 a. Stussy, Inc. v. Triple M Apparel, Inc., et al., U.S. District Court,
 7 Central of California, Case No. CV 94-6503 WDK (JGx) and
 8 Merry-Go-Round v. Stussy, Inc., U.S. District Court, District of
 9 Maryland, Civil Action No. JFM 94-2298 (relating to SCRATCH
 10 in stylized format);
- 11 b. Stussy, Inc. and Stussy UK Limited v. Freevote Limited, trading as
 12 Hussy Clothing, Buildplan Limited, Steven Hughes, High Court of
 13 Justice, Chancery Division, HCA No. 529/99 (relating to HUSSY
 14 in stylized format);
- 15 c. Stussy, Inc. v. Tsuneo Uematsu, Trademark Trial & Appeal Board
 16 (relating to WAVY in stylized format).

17 17. Stussy has also had to take action against other infringements of the
 18 STUSSY Graffiti Logo, including:

- 19 a. PornStar, a division of L & H Apparel, Inc. (relating to PUSSY in
 20 stylized format);
- 21 b. P-Green (relating to stylized STUPID and PUSSY); and
- 22 c. Ultra Hot Graphics (relating to stylized STUPID).

23 18. Each of the matters referred to above have been successfully resolved by
 24 the infringer's ceasing all use of the infringements. Each of the above persons and
 25 businesses recognized the value of the STUSSY Graffiti Logo and therefore copied it
 26 for the purpose of increasing its sales of its products and reducing the sales of Stussy's
 27 products. Each of such persons and businesses sought to illegally share in the fame
 28 and good reputation of Stussy, and to dilute the distinctiveness of Stussy's Mark..

FIRST CLAIM FOR RELIEF

(For Infringement of Federally Registered Trademarks)

19. Stussy incorporates herein by reference the averments of the preceding paragraphs as though fully set forth herein.

20. With actual and constructive notice of the foregoing federal and state trademark registrations and of Stussy's extensive and continuous use of Stussy's Mark, Defendant has offered for sale and, upon information and belief, sold infringing products. Defendant refers to its infringing products as style number 7623 and also as "Juicy" (hereinafter "infringing products").

21. Defendant knowingly and intentionally copied Stussy's Mark, and did so for the purpose of causing confusion, and generating interest in Fresh Jive's products, including its other products. Thereafter, Defendant decided to copy other trademarks in order to give an excuse for the copying of Stussy's Mark. The principle that if a defendant intentionally copies a trademark, it is to be presumed that the Defendant accomplished its purpose of causing confusion should be applied to this lawsuit.

22. Specifically, Defendant knew of the STUSSY Graffiti Logo mark and intentionally sought to slavishly copy it by transforming it into Fresh Jive, but retaining all the distinctive feature of the STUSSY Graffiti Logo. Defendant, knowing that Stussy would object to such use, concealed such use from Stussy. Apparently, Defendant disclosed at least one of its other copies of other trademarks to the relevant brand owners and allegedly obtained the consent of the brand owner. Defendant did not request Stussy's permission because Defendant knew it would be denied.

23. Defendant acknowledges that Stussy is an industry leader, a core brand, and who it is worth copying. There are many, many brands in the marketplace. Defendant insists on copying Stussy's Graffiti Logo mark because it is more valuable than other brands, and Defendant will be able to divert more sales by infringing Stussy's Mark than it could with other brands.

1 24. Defendant acknowledges that it needs Stussy's permission to use the
2 infringing graphic because it requested Stussy's permission. Stussy's permission was
3 denied. Nevertheless, Defendant insists that it will use the infringing graphic.

4 25. Buyers and persons who see the infringing products will think that they
5 are approved by Stussy, since they (and Defendant itself) assumes that if the product
6 is so similar to Stussy's Mark, that the products had to have been approved by Stussy.
7 In fact, Stussy does not approve the Defendant's infringing product and strongly
8 objects thereto.

9 26. Upon information and belief Stussy avers that once Stussy learned of
10 Defendant's infringement and demanded that Defendant cease such infringement,
11 Defendant, after consulting with its attorneys, came up with the excuse that its
12 infringement was allegedly a parody. This is an acknowledgment that Defendant's
13 product is an infringement unless Defendant can prove its affirmative defense.

14 27. Once Defendant's infringement was discovered by Stussy, Defendant
15 sought to make modifications to the infringing graphic, but without eliminating the
16 offending portions.

17 28. Upon information and belief, Stussy avers that Defendant has offered for
18 sale t-shirts with infringements of the STUSSY Graffiti Logo. An offer to sell is an
19 infringement under the Lanham Act. Stussy further avers, upon information and
20 belief, that Defendant has manufactured and may have sold some number of
21 infringing t-shirts. Defendant has made it clear that it intends to take orders, sell and
22 ship infringing t-shirts, despite Stussy's requests that Defendant cease. It would cost
23 Defendant virtually nothing to stop use of the infringing graphic or to copy some other
24 brand's trademarks. Yet, Defendant is insistent that it be allowed to manufacture and
25 sell infringing t-shirts.

26 29. Stussy is informed and believes, and upon such information and belief
27 avers, that Defendant advertised and promoted infringing products and thereby caused
28 harm to Stussy. Defendant intended to cause and did cause, directly or indirectly,

1 third parties to advertise and promote the infringing products, and thereby caused
2 harm to Stussy.

3 30. Defendant knew that the merchandise was infringing or had reason to
4 know that it was infringing and was recklessly indifferent to the fact that such
5 merchandise was infringing.

6 31. Defendant has, without the consent of Stussy, used in commerce
7 reproductions, infringements, copies, and colorable imitations of Stussy's Mark in
8 connection with the sale, offering for sale and distribution of goods on or in
9 connection with such use as is likely to cause confusion, mistake, and deception,
10 thereby violating Section 1114 of Title 15 of the United States Code.

11 32. Despite Defendant's knowledge that its acts are wrongful, it has offered
12 for sale, and upon information and belief, sold and distributed infringing and
13 infringing goods.

14 33. Defendant's promotion, sale, offering for sale, and distribution of the
15 infringing goods will or has caused a loss of sales of Stussy's genuine products and
16 will result in the loss of future sales to customers because of Defendant's inferior
17 reputation and Defendant's inferior products.

18 34. Defendant has already obtained benefit from its infringement by showing
19 samples of the infringing products to prospective customers and in Defendant's
20 catalog, which causes an increase interest in Defendant and its products.

21 35. The promotion, sale, offering for sale, and distribution by Defendant of
22 these infringing goods is likely to cause confusion and mistake and to deceive
23 purchasers and will in fact cause confusion, mistake, and deception.

24 36. Defendant's acts have caused or are likely to cause, unless restrained by
25 this Court, Stussy and the public to suffer great and irreparable damage and injury
26 through, inter alia, (a) a likelihood of confusion, mistake, and deception among the
27 relevant purchasing public and trade as to the source of the Defendant's infringing
28

1 goods; and (b) the loss of Stussy's valuable goodwill and business reputation
2 symbolized by Stussy's Mark.

3 37. Stussy has suffered loss of profits and other damage, and Defendant has
4 earned illegal profits, in an amount to be proven at trial, as the result of the aforesaid
5 acts of Defendant. Such damages and profits should be trebled in accordance with 15
6 U.S.C. Section 1117.

7 38. Stussy has no adequate remedy at law.
8

9 **SECOND CLAIM FOR RELIEF**

10 **(For False and Misleading Descriptions and Representations and Dilution)**

11 39. Stussy incorporates herein by reference the averments of the preceding
12 paragraphs as though fully set forth herein.

13 40. Defendant has, on or in connection with its infringing goods, used words,
14 terms, names, symbols, devices, and combinations thereof, false designations of
15 origin, and false and misleading descriptions and representation of facts that:

16 a. Caused or are likely to cause confusion, mistake, and deception as
17 to the affiliation, connection, and association of Defendant with Stussy and as to the
18 origin, sponsorship, and approval of Defendant's goods; and

19 b. Misrepresented, in commercial dealings, the nature, characteristics,
20 qualities, and origin of Defendant's goods.

21 41. Upon information and belief, Stussy avers that Defendant has made and
22 will make false representations regarding its goods and the connection of such goods
23 to Stussy and to Stussy's genuine merchandise. Such representations were made and
24 will be made in connection with commerce.

25 42. Defendant has made commercial use of STUSSY, which began after
26 Stussy's Mark became distinctive and famous. Such use has been in commerce.

27 43. Defendant acts have caused and will cause if not enjoined, actual dilution
28 of Stussy's famous and distinctive STUSSY Graffiti Logo.

1 44. Defendant's acts have caused and, unless restrained by this Court, will
2 continue to cause Stussy and the public to suffer great and irreparable damage and
3 injury through, inter alia, (a) a likelihood of confusion, mistake and deception among
4 the relevant purchasing public and trade as to the source of the Defendant's infringing
5 goods; (b) the loss of Stussy's valuable goodwill and business reputation symbolized
6 by Stussy's Mark; and (c) actual dilution of the distinctiveness of Stussy's Mark.

7 45. Stussy has suffered loss of profits and other damage, and Defendant has
8 earned illegal profits, in an amount to be proven at trial, as the result of the aforesaid
9 acts of Defendant. Such damages and profits should be trebled in accordance with 15
10 U.S.C. Section 1117.

11 46. Stussy has no adequate remedy at law.
12

13 **THIRD CLAIM FOR RELIEF**

14 **(For California and Common-Law Trademark and**
15 **Trade Name Infringement)**

16 47. Stussy incorporates herein by reference the averments of the preceding
17 paragraphs as though fully set forth herein.

18 48. Defendant's use, without the consent of Stussy, of reproductions,
19 infringements, copies or colorable imitations of Stussy's Mark in connection with
20 Defendant's goods, is likely to cause confusion, mistake and deception. Such use
21 infringes Stussy's rights in Stussy's Mark in violation of California trademark law,
22 including Business and Professions Code Sections 14320, 14335, and 14340, and the
23 common law.

24 49. Defendant has been guilty of oppression, fraud, and malice in that its
25 conduct was intended by Defendants to cause injury to Stussy, is despicable and was
26 carried on with a willful and conscious disregard of the rights of Stussy and the
27 public. Defendant has made intentional misrepresentations, including but not limited
28 to that the infringing goods are connected with or authorized by Stussy, concealed

1 material facts including but not limited to the fact that Stussy did not authorize the
2 infringing products and that Defendant is copying Stussy's Graffiti Logo mark
3 without Stussy's consent, and perpetrated deception with the intent to deprive Stussy
4 and others of property and legal rights. By reason of the foregoing, Stussy is entitled
5 to exemplary damages on common law claims against Defendant in an amount to be
6 proven at trial.

7 50. Defendant's acts have caused and, unless restrained by this Court, will
8 continue to cause Stussy and the public to suffer great and irreparable damage and
9 injury.

10 51. Stussy has suffered loss of profits and other damage, and Defendant has
11 earned and will earn illegal profits, in an amount to be proven at trial, as the result of
12 the aforesaid acts of Defendant.

13 52. Stussy has no adequate remedy at law.

14
15 **FOURTH CLAIM FOR RELIEF**

16 **(For Injury to Business Reputation and Dilution)**

17 53. Stussy incorporates herein by reference the averments of the preceding
18 paragraphs as though fully set forth herein.

19 54. Defendant's use of colorable copies and imitations of Stussy's Mark is
20 likely to cause injury to Stussy's business reputation and dilute the distinctive quality
21 of Stussy's Mark in violation of California trademark law, including Business and
22 Professions Code Section 14330 and the common law.

23 55. Defendant's acts have caused and, unless restrained by this Court, will
24 continue to cause Stussy and the public to suffer great and irreparable damage and
25 injury.

26 56. Stussy has suffered loss of profits and other damage, and Defendant has
27 earned illegal profits, in an amount to be proven at trial, as the result of the aforesaid
28

1 acts of Defendant. By reason of the foregoing, Stussy is entitled to exemplary
2 damages on common law claims against Defendant in an amount to be proven at trial.

3 57. Stussy has no adequate remedy at law.
4

5 **FIFTH CLAIM FOR RELIEF**

6 **(For Unfair Competition and Unfair Practices)**

7 58. Stussy incorporates herein by reference the averments of the preceding
8 paragraphs as though fully set forth herein.

9 59. Defendant has engaged in unfair and fraudulent business practices by the
10 acts herein alleged. Stussy alleges upon information and belief that such acts will
11 continue unless restrained by this Court.

12 60. Defendant's acts have impaired Stussy's goodwill, have created a
13 likelihood of confusion, have actually confused the public, and have otherwise
14 adversely affected Stussy's business and reputation by use of unfair and fraudulent
15 business practices in violation of California Business & Professions Code, including
16 Sections 17200 to 17208, and the common law.

17 61. Defendant's acts have caused and, unless restrained by this Court, will
18 continue to cause Stussy and the public to suffer great and irreparable damage and
19 injury.

20 62. Stussy has suffered loss of profits and other damage, and Defendant has
21 earned illegal profits, in an amount to be proven at trial, as the result of the aforesaid
22 acts of Defendant. However, on the statutory unfair competition claim, Stussy seeks
23 only disgorgement of profits, and does not seek damages at law.

24 63. Stussy has no adequate remedy at law.
25

26 **PRAYER FOR RELIEF**

27 WHEREFORE, Plaintiff Stussy, Inc. prays for relief against Defendant Fresh
28 Jive Manufacturing, Inc., that:

1 A. Defendant, and each of its agents, servants, employees, attorneys,
2 successors and assigns, and all persons in active concert or participation with any of
3 them, be temporarily, preliminarily, and permanently enjoined and restrained from:

4 1. Using the infringing graphic, style number 7623, also referred to as
5 “Juicy,” or any graphic similar thereto;

6 2. Infringing any of Stussy’s Marks or using any word, term, name,
7 symbol, device, or combination thereof that causes or is likely to cause confusion,
8 mistake, or deception;

9 3. Using any word, term, name, symbol, device, or combination
10 thereof that causes or is likely to cause confusion, mistake, or deception as to the
11 affiliation, origin, or association of Defendant or its goods with Stussy, or using any
12 false designation of origin or false or misleading description or representation of fact;

13 4. Manufacturing any goods that bear any of Stussy’s Marks, alone or
14 in combination with any other word(s) or device(s), or selling, offering for sale,
15 distributing, advertising, or promoting any goods that bear any of Stussy’s Mark,
16 alone or in combination with any other word(s) or device(s);

17 5. Using any words or symbols that so resemble any of Stussy’s Mark
18 as to be likely to cause confusion, mistake, or deception on or in connection with the
19 manufacture, importation, sale, offering for sale, distribution, advertisement, or
20 promotion of any product that is not authorized by or for Stussy;

21 6. Diluting or infringing the rights of Stussy in and to the STUSSY
22 Graffiti Logo, or any of Stussy’s Marks or otherwise damaging Stussy’s goodwill or
23 business reputation; or

24 7. Otherwise competing unfairly with Stussy in any manner.

25 B. Defendant be required to deliver to Stussy’s attorneys for destruction
26 Defendant’s entire inventory of infringing and unauthorized products, packaging, and
27 labeling.
28

1 C. Defendant be required to recall all infringing products, and all catalogs
2 with photographs of the infringing items.

3 D. Defendant, within thirty days after the service of the judgment herein, be
4 required to file with this Court and serve upon Stussy's attorneys a written report
5 under oath setting forth in detail the manner in which it has complied with the
6 judgment.

7 E. Stussy recover its lost profits and actual damages in an amount to be
8 proven at trial from Defendant (except that restitution only, and not money damages,
9 is requested in connection with the California statutory unfair-competition claims),
10 that Defendant be required to account for any of its profits that are attributable to
11 Defendant's acts, and that all such damages be trebled as provided by 15 U.S.C.
12 § 1117 and Cal. Bus. & Prof. Code §14340, including interest thereon at the
13 maximum rate permitted by law.

14 F. Defendant be required to disgorge its profits (as to the California
15 unfair-competition claim).

16 G. Defendant pay Stussy damages for its oppression, fraud, and malice for
17 its violation of Stussy's rights under California law.

18 H. Stussy recovers its attorneys' fees.

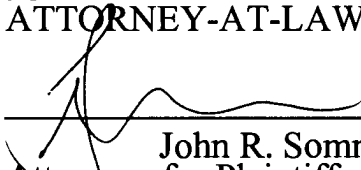
19 I. Stussy recovers its taxable costs and disbursements herein.

20 J. The Court grant Stussy such other and further relief as the Court deems
21 just and proper.

22 Dated: December 9, 2004

MATT J. RAILO
BRIAN A. ROSS
MITCHELL SILBERBERG & KNUPP
LLP

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25 JOHN R. SOMMER
ATTORNEY-AT-LAW

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27 
28 John R. Sommer
Attorneys for Plaintiff
STUSSY, INC.

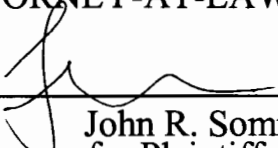
DEMAND FOR JURY TRIAL

Plaintiff Stussy, Inc., hereby demands trial by jury of all issues that are so triable.

Dated: December 9, 2004

MATT J. RAILO
BRIAN A. ROSS
MITCHELL SILBERBERG & KNUPP
LLP

JOHN R. SOMMER
ATTORNEY-AT-LAW



John R. Sommer
Attorneys for Plaintiff
STUSSY, INC.

USA
STUSSY graffiti
25

TR 129559

THE UNITED STATES OF AMERICA

TO ALL TO WHOM THESE PRESENTS SHALL COME:

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office

July 29, 1999

THE ATTACHED U.S. TRADEMARK REGISTRATION 2,060,941 IS
CERTIFIED TO BE A TRUE COPY OF THE REGISTRATION ISSUED BY
THE UNITED STATES PATENT AND TRADEMARK OFFICE WHICH
REGISTRATION IS IN FULL FORCE AND EFFECT.

REGISTERED FOR A TERM OF 10 YEARS FROM *May 13, 1997*
SAID RECORDS SHOW TITLE TO BE IN: *Registrant*



By Authority of the
COMMISSIONER OF PATENTS AND TRADEMARKS

N. Woodson
N. WOODSON
Certifying Officer

EXHIBIT A

Int. Cl.: 25

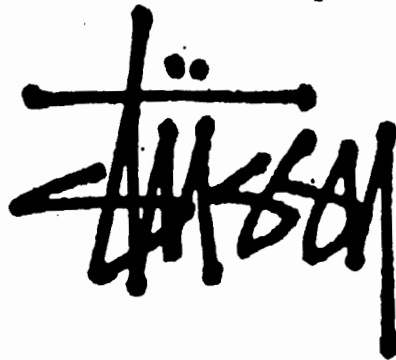
Prior U.S. Cls.: 22 and 39

Reg. No. 2,060,941

United States Patent and Trademark Office

Registered May 13, 1997

**TRADEMARK
PRINCIPAL REGISTER**



STUSSY, INC. (CALIFORNIA CORPORATION)
1852 LANGLEY AVENUE
IRVINE, CA 92714

FOR: CLOTHING, NAMELY T-SHIRTS,
SWEATSHIRTS, JERSEYS, SHORTS, SWEAT-
PANTS, JACKETS, HATS, CAPS, SWIMSUITS,
SKIRTS, DRESSES, SHIRTS, TANK TOPS,
PANTS, COATS AND BELTS, IN CLASS 25 (U.S.
CLS. 22 AND 39).

FIRST USE 7-0-1992; IN COMMERCE
7-0-1992.

OWNER OF U.S. REG. NOS. 1,395,006 AND
1,449,390.

THE MARK CONSISTS OF THE TERM
"STUSSY" IN STYLIZED LETTERING.
SEC. 2(F).

SER. NO. 75-077,688, FILED 3-25-1996.

JEAN MARC BRUN, EXAMINING ATTORNEY

STUSSY graffiti
25

State of California



SECRETARY OF STATE

Trademark Reg. No. 105471

Class No. Int. 25

CERTIFICATE OF REGISTRATION OF TRADEMARK

I, **BILL JONES**, Secretary of State of the State of California, hereby certify:

That in accordance with the application filed in this office the **TRADEMARK** described below has been duly registered in this office on behalf of:

Name of Applicant: STUSSY, INC.

Business Address: 17426 Daimler Street, Irvine, CA 92614

Date first used in California: At least as early as July 1992

Date first used anywhere: At least as early as July 1992

Description of Trademark: STUSSY (stylized with two dots over the letter 'U')

Description of Goods on which the Trademark is used: Clothing; namely, bathing suits, beach cover ups, belts, coats, dresses, head bands, jackets, jerseys, pajamas, pants, rainwear, shirts, shorts, skirts, sweat pants, sweatshirts, sweaters, swim suits, t-shirts, tank tops, tights, vests, wind-resistant jackets, and headwear.

A copy, specimen, facsimile, counterpart or a reproduction of the mark is attached

Date of Registration: August 27, 1999

Term of Registration Extends to and Includes: August 27, 2009

IN WITNESS WHEREOF, I execute
this certificate and affix the Great
Seal of the State of California this
1st day of September, 1999



Bill Jones
BILL JONES
Secretary of State

EXHIBIT B

**A COPY, SPECIMEN, FACSIMILE, COUNTERPART OR
REPRODUCTION OF TRADEMARK REG. NO. 105471**

